

No. _____

IN THE
Supreme Court of the United States

JOHN DOES 1,2,4,AND 5,

Applicants,

v.

SEATTLE POLICE DEPARTMENT AND SAM SUEOKA,

Respondents.

APPLICATION FOR A STAY OF
MANDATE ISSUED BY THE

**EMERGENCY APPLICATION FOR A STAY OF MANDATE
ISSUED BY THE KING COUNTY SUPERIOR COURT**

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PARTIES TO THE PROCEEDING

Applicants were respondents below before the Washington State Supreme Court. They are four current and former Seattle police officers who attended President Donald Trump’s “Stop the Steal” political rally (“Rally”) on January 6, 2021, in Washington, D.C. but were found, following a police department investigation, not to have engaged in unlawful or unprofessional conduct. After being notified of a number of public records requests targeting their attendance at the Rally, Applicants brought suit against the City of Seattle seeking declaratory and injunctive relief prohibiting public disclosure of unredacted investigatory records. These records include, among other records, transcripts of interviews in which the applicants were compelled to participate, under threat of termination, and were required to disclose their political beliefs, affiliations, reasons for attending the Rally, and their mental impressions as to the content of the Rally.

Respondents were petitioners below. They are the Seattle Police Department and Sam Sueoka, a private citizen who submitted records requests pursuant to the Washington State Public Records Act (“PRA”), Chapter 42.56 RCW, seeking disclosure of the investigatory records pertaining to police officers who participated in the events of January 6, 2021, in our nation’s capital. During litigation on this issue, Sueoka repeatedly moved to change the case title and bar the use of pseudonyms.

**TO THE HONORABLE ELENA KAGAN, ASSOCIATE JUSTICE OF THE SUPREME COURT
OF THE UNITED STATES AND CIRCUIT JUSTICE FOR THE NINTH CIRCUIT:**

Applicants respectfully apply for an emergency stay of the mandate issued on June 18, 2025 by the King County Superior Court and affirmed Washington State Court of Appeals. Applicants also respectfully request an immediate injunction to preserve the status quo and avoid severe harms while the Court considers this application. This application is submitted pursuant to Supreme Court Rule 23 and the All Writs Act, 28 U.S.C. §1651.

The King County Superior Court issued an order on June 18, 2025, unsealing certain items on the docket and requiring the Applicants to refile their lawsuit under their true names within ten (10) days. On emergency appeal, the Washington State Court of Appeals, Division I, declined to stay the Trial Court's Order, making its ruling on June 23, 2025. The mandate is set to take effect on June 28, 2025. The result would prevent Applicants from litigating under pseudonym, thereby undermining their ability to assert their First Amendment privacy right in political beliefs and associations they seek to vindicate.

Because part of the Trial Court's Order is set to be enacted immediately, Applicants submit this application on an emergency basis. The Order poses imminent, concrete, and irreparable harm to Applicants, whose First Amendment rights to engage in anonymous political expression were side stepped by the Washington State Supreme Court's opinion issued on February 13, 2025, with a mandate issued on April

10, 2025.¹

The Washington State Supreme Court specifically will not stay a matter pending a Petition for Certiorari to the United States Supreme Court pursuant to Wash. R. App. P. 12.6.² Moreover, neither the Trial Court nor the Court of Appeals believe they have the authority to stay the Washington State Supreme Court's Mandate. Thus, now that an immediate and imminent harm has arisen, Applicants are in a position which clearly shows that there is no possible effective remedy in State Court.

Applicants respectfully request emergency review and an immediate injunction to preserve the *status quo that existed prior to Respondents' attempts to force the Petitioners to cease litigating in pseudonym* and avoid the imminent harm the June 18 Trial Court Order poses, pending the filing and disposition of a petition for a writ of certiorari in this court, which is due on July 8, 2025.

If the June 18, 2025 Order is not stayed, Applicants will be required to refile their complaint with their names in lieu of using "John Doe 1, 2, 4, 5" by June 28. The result would undermine Applicants' ability to seek review in this court, because the constitutional injury they are litigating to prevent would materialize, rendering

¹ Arguably, prior to June 4, 2025, there was no immediate harm because the *status quo* was such that the Petitioners' identities were still anonymous because they were litigating *in pseudonym*.

² "Except as provided in RAP 12.5, the appellate court will not stay issuance of the mandate for the length of time necessary to secure a decision by the United States Supreme Court on an application for review. In the event that the United States Supreme Court accepts review or grants certiorari and remands a case to the appellate court for further consideration, the clerk will recall the mandate." Wash. R. App. P. 12.6.

further proceedings on these important constitutional issues futile.

Without a doubt, Applicants have exhausted all options at the State level. Their motion for reconsideration to the Washington State Supreme Court was denied on April 9, 2025. Their emergency appeal of the June 18 Trial Court Order was denied in the Washington State Court of Appeals on June 23. Per its procedures and rules, the Washington State Supreme Court will not pause their issuance of a mandate to await a pending petition in this Court. *See* Wash. R. App. P. 12.6. Instead, the Washington State Supreme Court will only pause its mandate when a writ of certiorari is granted. *Id.* Therefore, in circumstances like these, where the mandate at issue will prematurely defeat the purpose of the case, there is no avenue for temporary relief whatsoever on the State level—as the Washington State Supreme Court is prohibited by Wash. R. App. P. 12.6, and neither the Trial Court nor the Court of Appeals believe they have any authority to contradict the mandate.

An emergency stay from this Court is the only option to revert to the *status quo* at the Trial Court whilst this Court considers a writ of certiorari. The writ of certiorari is due on July 8, very shortly after the Trial Court Order would undermine Applicants' case. Delaying the exposure of Applicants' identities for a short time pending review in this Court would be of no consequence to the Respondents—Petitioners' identities have been unknown to them for over four (4) years as this matter has been litigated.

At its core, this appeal involves whether a government agency can ignore the

chilling effect resulting from an employer requiring an employee to disclose their off duty political activities and attendant impressions or motivations associated therewith, followed by widespread dissemination to those who deliberately seek this information to subject these public servants to vilification without the commission of any misconduct whatsoever.

OPINIONS BELOW

The opinion of the Supreme Court of Washington is reported at *Does 1, 2, 4, & 5 v. Seattle Police Dep't*, 563 P.3d 1037 (Wash. 2025) (hereafter, “*Does 1, 2, 4, & 5*”). That decision reversed the unanimous opinion of the Washington Court of Appeals, Division One, reported at *Doe 1 v. Seattle Police Dep't*, 27 Wn. App. 2d 295, 531 P.3d 821 (2023) (hereafter, “*Doe 1*”). The Washington Supreme Court denied a petition for rehearing on April 9, 2025. Those opinions and orders, together with the order of the Trial Court, are reproduced in the Appendix. Likewise, the Order of King County Superior Court requiring Applicants to reveal their identities while seeking review by this Court (and the related motions) are reproduced in the Appendix. The Washington State Court of Appeals’ denial of the request to review that order is reproduced in the Appendix. Finally, the original application for a stay of the mandate, as well as the denial of that application, is also reproduced in the Appendix.

JURISDICTION

The Supreme Court of Washington issued its opinion on February 13, 2025, and denied reconsideration on April 9, 2025, with a mandate issuing on April 10, 2025. As of June 18, 2025, the King County **Superior Court is enforcing that decision** with their Order. The Washington State Court of Appeals denied Applicants’ request to stay the trial court order. This Court has jurisdiction under 28 U.S.C. § 1257(a).

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

The constitutional and statutory provisions involved in this case are reproduced in the Appendix.

STATEMENT OF THE FACTS

1. This case arises from the imminent release of records relating to Seattle’s Office of Police Accountability (“OPA”) investigations and the identities of officers in response to a number of public records requests.
2. Applicants are four unnamed Seattle Police Officers who attended President Donald Trump’s political rally and speech in Washington, D.C. on January 6, 2021. Unfortunately, some of the attendees at the Rally went on to commit crimes at the United States Capitol (“Capital Riot”). However, the Applicants were investigated, and no wrongdoing was found.
3. In the aftermath of January 6th, the Seattle Police Department (“SPD”) directed any of its officers who attended the Rally to self-report and required them to submit to an investigation by the OPA to determine if they participated in the Capitol Riot or engaged in other criminal acts or misconduct. The four Applicants self-reported their presence at the January 6, 2021 Rally. Within a few weeks, each of the four Applicants received a complaint from OPA alleging a possible violation of the law and SPD policies by “trespassing on Federal property and/or participating in the planning and/or forced illegal entry of the U.S. Capitol Building that day.” As part of the investigation, SPD ordered each Applicant to submit to interviews. At the outset of the interview, each Applicant

was informed by the OPA examiner of an SPD directive to answer all questions asked, truthfully and completely, and that the failure to do so could result in discipline up to and including termination. Understandably, SPD held significant concerns about any officer's presence at or near the Capitol Building. Despite these legitimate concerns over SPD officer involvement in the Capitol Riot, the investigation focused on more than just the Applicants' whereabouts. OPA investigators explored the Applicants' motivations for attending the Rally, their impressions and reactions to the Rally, as well as their political affiliations. Importantly, in some cases, Applicants were asked, directly, to explain away how their lawful attendance at this Rally, in and of itself, did not amount to unprofessional conduct. Because Applicants were ordered to answer all these personal questions, they did so truthfully and completely. In addition to the Government disclosing the identities of Applicants, the records themselves demonstrate more than just mere attendance at a political rally.

4. Several members of the public made records requests to the SPD pursuant to the PRA, seeking disclosure of the investigatory records pertaining to the police officers who participated in the events of the January 6, 2021 Rally. The officers anonymously sued the SPD, OPA, and requestors, seeking a preliminary injunction to prevent the release of their identities within those public records. During litigation on this issue, Respondent Sam Sueoka repeatedly moved to change the case title and bar the use of pseudonyms.

5. The Washington State Court of Appeals, Division I, unanimously reversed the Trial Court’s denial of Applicants’ preliminary injunction and right to proceed *in pseudonym*, recognizing the right to exercise First Amendment rights “anonymously while in public.” *Doe 1*, 531 P.3d 821, review granted sub nom. Does 1, 2, 4, 5 v. Sueoka, 537 P.3d 1031 (Wash. 2023), and rev’d sub nom. Does 1, 2, 4, & 5 v. Seattle Police Dep’t, 563 P.3d 1037 (Wash. 2025).
6. In holding that the First Amendment prohibited the widespread dissemination of the Respondent Officers’ identifying information, Division I of the Washington State Court of Appeals reasoned that, because these requests constituted “compell[ed] disclosure of an individual’s political beliefs and associations,” disclosure could *only occur* if the government could “demonstrat[e] a compelling state interest with sufficient relation to the information sought to be disclosed.” *Doe 1*, 531 P.3d at 846.
7. The Court of Appeals both recognized that the PRA’s “other statutes provision” in RCW 42.56.070(1) contemplated a “catch all” exemption based on Constitutional considerations, and that the state injunction standard was satisfied “[g]iven the State’s paramount interest in affirming the federal constitutional rights of its citizens, disclosure that would impinge the Doe Officers’ First Amendment rights would clearly not be in the public interest and because the Does’ constitutional rights would be impinged by disclosure of the unredacted records, such disclosure would of necessity substantially and

irreparably damage the Does.” *Doe 1*, 531 P.3d at 855 (internal quotations omitted).

8. However, eighteen months later, the Washington State Supreme Court reversed the Court of Appeals, unanimously holding, in spite of well-established United States Supreme Court decisional authority, that there was no such right to remain anonymous in public and that the Applicants’ need to proceed *in pseudonym* was unnecessary to vindicate that non-existent right. *Does 1, 2, 4, & 5 v. Seattle Police Dep’t*, 563 P.3d 1037 (Wash. 2025).
9. Respectfully, the Washington State Supreme Court overlooked that Applicants were not just investigated on suspicion of having participated in the Capitol Riot, but were specifically questioned as to their political beliefs, motivations for attending the Rally, and their impressions resulting from same. Here, each Applicant has previously testified that this entire experience has already chilled their willingness to voice unpopular opinions.
10. Applicants filed a motion for reconsideration with the Washington Supreme Court, which it denied on April 9, 2025.
11. There is no Rule of Appellate Procedure that allows a Party to request the Washington State Supreme Court to stay remand, or otherwise, pending an appeal to the United States Supreme Court. **See Wash. R. App. P. 12.6.**³ Thus,

³ “Except as provided in RAP 12.5, the appellate court will not stay issuance of the mandate for the length of time necessary to secure a decision by the United States Supreme Court on an application for review. In the event that the United States Supreme Court accepts review or grants certiorari and remands a case to the appellate court for further consideration, the clerk will recall the mandate.” Wash. R. App. P. 12.6.

on the next day, April 11, 2025, the Represented Officers filed a Motion to Stay before Justice Elana Kagan at the United States Supreme Court pending the filing of a Petition of Certiorari.

12. On April 18, 2025, Justice Kagan called for responsive briefing from the other Parties. Both Requestor Defendant and the City submitted responsive briefings on April 22, 2025, and April 23, 2025, respectively.
13. The United States Supreme Court denied the Motion to Stay on June 4, 2025. It is unknown why Justice Kagan, on behalf of the Court, denied the Stay. However, *despite* the lack of any mechanism at the Washington State Supreme Court to stay the Washington State Supreme Court Decision, due to Wash. R. App. P. 12.6, Justice Alito, with Justice Thomas concurring, stated:

I concur in the Court's denial of the application for a stay pending the filing of a petition for a writ of certiorari. Among other things, the applicants do not appear to have requested a stay from the Washington Supreme Court or any other Washington court prior to asking this Court for a stay. See this Court's Rule 23. Furthermore, the mandate of the Washington Supreme Court was issued more than a month ago, and the applicants have not adequately explained why at this point they still face an imminent danger of irreparable harm.

Doe v. Seattle Police Dep't, 145 S. Ct. 1539 (2025) (Alito, J., concurring).

14. Despite this denial, those two (2) Supreme Court Justices issued a firm concurrence, questioning the Washington State Supreme Court's ruling on the specific issues brought forth on Reconsideration.

The Court's denial of this application, however, should not be read as an endorsement of the decision below or its interpretation of the First Amendment.

...

We have held that the First Amendment provides a measure of protection for the right to engage in anonymous political expression. See, e.g., *Talley v. California*, 362 U.S. 60, 64, 80 S.Ct. 536, 4 L.Ed.2d 559 (1960); *Watchtower Bible & Tract Soc. of N. Y., Inc. v. Village of Stratton*, 536 U.S. 150, 166–167, 122 S.Ct. 2080, 153 L.Ed.2d 205 (2002). The applicants contend that this right will be violated if both their identities and their responses to questions on sensitive subjects are revealed.

The Washington Supreme Court sidestepped this argument. It reasoned that the applicants had no protected right regarding the fact that they attended public events in Washington on January 6 because they failed to produce “any evidence demonstrating they took measures to attend the [January 6] rally anonymously.” 563 P.3d at 1053. But that reasoning ignores the fact that the officers challenge the disclosure of their responses to investigatory questions, not merely the fact of their presence in Washington, D. C.

Our denial of review in this case should not be taken as manifesting any degree of support for the proposition that the disclosure at issue in this case is consistent with the First Amendment.

Doe v. Seattle Police Dep’t, 145 S. Ct. 1539, (Mem)–1540 (2025).

15. As stated, as soon as this denial of stay was issued, on June 4, 2025, the Respondents attempted to alter the *status quo* at the Trial Court by filing a motion to force the Petitioners to cease litigating *in pseudonym*. On June 18, 2025, the King County Superior Court granted this requested relief, and issued an Order barring the use of pseudonyms and unsealing the docket in this case. The Order requires Applicants to refile their complaint within ten (10) days with their names (in lieu of John Doe). By requiring the Applicants to use their names in the case caption and unsealing the docket, the exact injury they are litigating

against would be incurred as a result, undermining their ability to assert their First Amendment Privacy Rights in political beliefs and associations.

16. It is important to note that, along with its Order, the Trial Court stated:

The Represented Officers have cited neither court rule nor caselaw that allows a Washington trial judge to set aside or pause a decision of the Washington Supreme Court pending an appeal to the United States Supreme Court. It would appear that this Court lacks the authority to grant the relief sought by the Represented Officers. As such, the Represented Officers' Motion to Extend Previous Court Orders Pending United States Supreme Court Review is DENIED.

See Imminent Order, June 18, 2025, 3:53 p.m.

17. On June 23, the Court of Appeals confirmed the Trial Court's Order and denied Applicants' emergency motion for a stay. *See* Commissioner's Ruling Denying Emergency Motion For Stay, No. 88338-1-I.

18. Thus, now that an imminent harm has arisen, and it is without a doubt that there is no State Court mechanism to prevent the imminent harm set to take effect on June 28th, Applicants seek relief from this Court.

ARGUMENT

I. The Court Should Issue an Immediate, Emergency Stay of the King County Superior Court's Mandate Pending Review

Applicants respectfully request that this Court grant an emergency stay of the mandate issued by the King County Superior Court on June 18th and confirmed by the Washington State Court of Appeals. This mandate enforces the Washington State Supreme Court's decision to bar Applicants from proceeding *in pseudonym*, pending

further proceedings in this Court. Relief from this Court is needed and justified, as the harm that would result from this order is now imminent and concrete.

Moreover, since the Respondents attempted to alter the *status quo* at the Trial Court, thereby attempting to cause imminent and concrete harm, both the Trial Court and Court of Appeals have confirmed that they have no authority to stay the mandate. Additionally, the Washington State Supreme Court will not stay a mandate before a writ of certiorari is granted by this Court. Thus, there is no ability for applicants to prevent the impending and irreparable harm through the state courts.

In deciding whether to grant a stay of mandate, this court considers where there is: (1) a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari; (2) a significant possibility that a majority of the Court will conclude that the decision below was erroneous; and **(3) a likelihood that irreparable harm will result if the decision below is not stayed.** *Conkright v. Frommert*, 556 U.S. 1401, 1402, 129 S. Ct. 1861, 173 L. Ed. 2d 865 (2009) (emphasis added); *see also Curry v. Baker*, 479 U.S. 1301, 1302, 107 S. Ct. 5, 6–7, 93 L. Ed. 2d 1 (1986); *White v. Florida*, 458 U.S. 1301, 1302, 103 S. Ct. 1, 73 L. Ed. 2d 1385 (1982). Additionally, “in a close case it may be appropriate to ‘balance the equities’—to explore the relative harms to applicant and respondent, as well as the interests of the public at large.” *Conkright*, 556 U.S. at 1402.

As enumerated in Applicants’ previous application, factors (1) and (2) are readily met here, because longstanding authority from this Court unequivocally confirms the Applicants have a First Amendment right to be anonymous in public. In holding as it did, the Washington State Supreme Court reasoned that Applicants simply lacked a constitutional right to remain anonymous in public. *Does 1, 2, 4, & 5*,

563 P.3d at 1053. Justice Alito and Justice Thomas noted as much in their concurrence, denying the previous petition.⁴

Presumably, the previous application was denied because “Applicant’s did not show that they had exhausted their remedies in Washington State Courts to stay the mandate”, and “[A]pplicants have not adequately explained why at this point they still face an imminent danger of irreparable harm.” *See Denial of Application for Stay of the Mandate* (Alito, J., concurring). However, upon the Respondents’ attempt to disrupt the *status quo*, the June 18 Trial Court’s Order requiring that Applicants cease litigating *in pseudonym* and publicly reveal their identities presents a clear likelihood of irreparable harm, readily satisfying factor (3). Moreover, both the Trial Court and Court of Appeals have confirmed they believe they have *no* authority to stay or prevent the irreparable harm facing Applicants—and the Washington State Supreme Court will not pause its issuance of the mandate to await a decision in this Court. *See Wash. R. App. P. 12.6* (“the appellate court will not stay issuance of the mandate for the length of time necessary to secure a decision by the United States Supreme Court on an application for review. In the event that the United States

⁴ In regard to the Washington State Supreme Court’s opinion, Justice Alito wrote: “The Washington Supreme Court sidestepped [the anonymous in public] argument. It reasoned that the applicants had no protected right regarding the fact that they attended public events in Washington on January 6 because they failed to produce “any evidence demonstrating they took measures to attend the [January 6] rally anonymously.” 563 P. 3d, at 1053. But that reasoning ignores the fact that the officers challenge the disclosure of their responses to investigatory questions, not merely the fact of their presence in Washington, D. C. “Our denial of review in this case should not be taken as manifesting any degree of support for the proposition that the disclosure at issue in this case is consistent with the First Amendment. Respectfully, the Washington State Supreme Court ignored the long line of cases finding time and time again that the First Amendment affords those who participate in protected political activity to be free from compelled disclosure of their identities.”

Supreme Court accepts review or grants certiorari and remands a case to the appellate court for further consideration, the clerk will recall the mandate.”). Washington State Courts and Washington court rules offer no avenue for temporary relief in these circumstances because a mandate will still issue despite a certiorari petition, which would be prematurely fatal to this case.

A. The Applicants Will Be Irreparably Harmed Without a Stay From this Court

If Applicants are not allowed to proceed *in pseudonym*, they would suffer the very injury they are litigating to prevent. The June 18, 2025 Order from King County Superior Court followed by the denial of an emergency stay by the Court of Appeals present new facts and circumstances that will irreparably harm applicants if the Mandate is not stayed. By requiring the Applicants to refile their lawsuit and disclose their identities in the case caption within ten days, the trial court is enforcing the Washington State Supreme Court’s mandate—and making the Washington State Supreme Court the final arbiter of Applicants’ rights under the First Amendment in place of this Court and its future decision regarding a Writ of Certiorari. Respectfully, if this Court finds that Applicants’ asserted First Amendment rights exist, it should grant this motion to stay the King County Superior Court’s Mandate while Applicants continue litigating this important constitutional issue.

The Washington Supreme Court found: “[t]he “need” the [Applicants] advance in favor of anonymity is to prevent the harm of an invasion of their statutory or constitutional privacy rights.” *Does 1, 2, 4, & 5*, 563 P.3d at 1055. However, the

Washington State Supreme Court also found that the Respondents had not shown a sufficient privacy interest that could be invaded. *Id.* “Without demonstrating such a privacy interest that could be invaded by disclosure of their identities within public records, the officers cannot show a compelling privacy concern ‘that outweigh[s] the public interest in access to the court record.’” *Id.* However, the inverse must be true. If the Applicants can identify such an interest, then they can proceed *in pseudonym*. Accordingly, Applicants would ask, if the Applicants do establish the First Amendment anonymity and/or belief/associational interest—as argued above—then this Court allow them to continue to proceed *in pseudonym*.

Finally, balancing the equities shows that the Applicants would suffer an immediate, irreparable harm absent a stay while Respondents’ circumstance would remain materially unchanged with a stay. If the Mandate is not stayed and the Trial Court Order is effected, Applicants’ case becomes null and the harm they seek to prevent through litigation would occur. The First Amendment privacy right to personal political beliefs and associations—which Applicants are still in the midst of litigating—outweighs the Respondents’ very general interest in open proceedings.

In contrast, if the stay is granted, Respondents would merely have to wait for Applicants’ writ of certiorari to be denied, or for the final disposition of this case, to obtain the identities of Applicants, and would not suffer any irreparable harm. It is unclear what harm Respondents would suffer at all as a result of a stay; Respondents would merely have to wait, as they have been, while this case is litigated on its merits. But, with the recent decisions of the Trial Court and Court of Appeals, it will not be

possible to argue the merits of this case absent a stay of the mandate while this Court considers reviewing the matter.

B. The Washington Rules of Appellate Procedure Give the Applicants No Recourse at the State Level

Now that the Washington State Court of Appeals denied Applicants' emergency motion for injunctive relief, Applicants have no options left to preserve their anonymity and constitutional rights through Washington state courts.

Under the Washington Rules of Appellate Procedure, Washington appellate courts will not stay a mandate merely because a petition for certiorari is being filed with the U.S. Supreme Court. *See* Wash. R. App. P. 12.6. On June 18, the Trial Court in this matter stated that it also has no authority to issue a stay pending review by this Court and thus refused to issue a stay and ordered Applicants to reveal their names. The Superior Court is actively enforcing the Washington Supreme Court's decision, with an imminent and impending deadline of June 28th.

This development presents a **material and immediate harm** to Applicants. Further, Applicants sought emergency review of the Trial Court's June 18 decision by the Washington Court of Appeals, which similarly refused to stay the mandate while this Court considers the matter. As a result of the state court decision since the original emergency application was denied, Applicants now face an impending court deadline to reveal their identities, the very harm they sought

to prevent through litigation and the core of the constitutional issue at the heart of this matter.

Because the state courts have expressly declined to stay their own proceedings under Wash. R. App. P. 12.6, **this Court is now the only forum with the power to prevent irreparable harm** while a petition for certiorari is being prepared.

CONCLUSION

The King County Superior Court's Mandate should be stayed pending the filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court. This Court should also issue an injunction preventing the disclosure of Applicants' names to preserve the *status quo* and avoid severe harm while the Court considers this application and the writ for certiorari, which will be submitted on or before July 8. The irreparable harm Applicants face is imminent now that the June 18 Trial Court Order and Court of Appeals decision refusing to stay that order forces Applicants to disclose their identities by June 28. If the Mandate is stayed, the Applicants keep their beliefs and associations private, as secured by the First Amendment, while the important constitutional issues regarding the privacy of those beliefs and associations are litigated.

Respectfully submitted.

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